

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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ANTHONY ALSTON,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER PAUL
STUEVE (Tax #: 953454; Shield # 30003), SERGEANT
JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and
POLICE OFFICER JOHN DOE 2,

The plaintiff resides at:
Kings County, New York

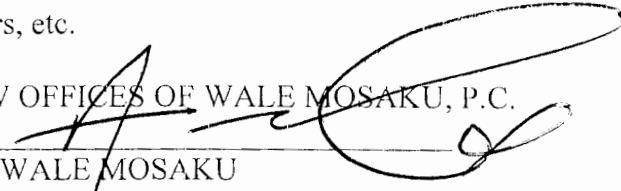
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
February 14, 2015

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
ANTHONY ALSTON,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER PAUL
STUEVE (Tax #: 953454; Shield # 30003), SERGEANT
JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and
POLICE OFFICER JOHN DOE 2,

Defendants.

-----X

ANTHONY ALSTON (hereinafter "plaintiff"), by his attorney(s), THE LAW OFFICES
OF WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF NEW
YORK, POLICE OFFICER PAUL STUEVE (Tax #: 953454; Shield # 30003),
SERGEANT JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and POLICE OFFICER
JOHN DOE 2, (collectively referred to as "the defendants"), upon information and belief,
alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiff under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth
Amendments to the Constitution of the United States; and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the law and
statutes of the City and/or State of New York.

THE PARTIES

2. Plaintiff is a resident of the City of New York, who resides in Kings
County, City and State of New York. Plaintiff is an African
American male of full age.

3. At all relevant times, defendants POLICE OFFICER PAUL STUEVE (Tax #: 953454; Shield # 30003), SERGEANT JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and POLICE OFFICER JOHN DOE 2 (hereinafter "defendant officers"), upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officer, through its Police Department, namely NYPD, and the actions of the defendant officer complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on August 14, 2014, within ninety days after the malicious prosecution claim alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in

the applicable Courts. Plaintiff's claim was assigned Claim No. 2014PI025580.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

FACTUAL ALLEGATIONS

9. On or about January 14, 2013 at approximately 12:00 a.m., on Pitkin Avenue, at or close to its intersection with Rockaway Avenue in Brooklyn, New York (subject location), the plaintiff was falsely arrested without probable cause by the defendant officers.
10. Immediately prior to his arrest, the plaintiff was operating his vehicle on Pitkin Avenue.
11. The plaintiff first observed the vehicle that the defendant officers were in, as they approached in the opposite direction of traffic on Pitkin Avenue.
12. After the vehicle that the defendant officers were in passed in the opposite direction of the plaintiff's vehicle, he observed said vehicle make a u-turn and drive directly behind his vehicle.
13. The plaintiff then observed the emergency lights of the defendant officers' vehicle come on, signaling him to pull over.
14. The plaintiff dutifully pulled over immediately.
15. After he had pulled over to the side of the road, the defendant officers approached the plaintiff's vehicle from opposite sides. Two of the defendant officers were on the left hand (passenger's) side of the plaintiff's vehicle, and the other two were on the right hand (driver's) side of the plaintiff's vehicle.
16. Each of the defendant officers positioned himself by a window of the plaintiff's vehicle.

17. Police Officer John Doe 1 was standing by the driver's side window, Sergeant John Doe 1 was standing by the front passenger's side window, and the remaining two defendant officers each stood by a rear passenger side window.
18. The plaintiff wound down each of the side windows of his vehicle, so that he was visible to each of the four defendant officers.
19. Police Officer John Doe 1 was the main communicator with the plaintiff, and initially asked the plaintiff for his license and registration.
20. The plaintiff reached into his glove compartment, and handed Police Officer John Doe 1 the documents that he had requested for.
21. The plaintiff was then asked for his license plates. The plaintiff showed the defendant officers his license plate, which he had placed on the front passenger's seat of his vehicle.
22. The plaintiff explained that the license plate had dropped off earlier that evening, when another vehicle had backed into the front of his vehicle.
23. At that juncture, Police Officer John Doe 1 asked the plaintiff to further wind down the windows of his vehicle. The plaintiff complied and further lowered his side windows almost all the way down.
24. Police Officer John Doe 1 then stated to the plaintiff that "*if I have to tell you one more time*", to which the plaintiff responded "*what do you mean?*"
25. Police Officer John Doe 1 then instructed the plaintiff to get out his vehicle, but before the plaintiff could comply, Police Officer John Doe 1 reached into the plaintiff's vehicle to unlock the plaintiff's driver's side door, and physically pulled the plaintiff out of his vehicle.
26. As soon as the plaintiff was out of his vehicle, Police Officer John Doe 1 then violently slammed the plaintiff against the hood of his vehicle, and placed him in handcuffs.

27. At that juncture, the plaintiff was searched thoroughly by Police Officer John Doe 1.
28. All the contents of the pockets of the plaintiff, including approximately \$2,600.00 in cash, were removed by Police Officer John Doe 1.
29. The plaintiff was then transported to the 73rd precinct.
30. Prior to being transported to the 73rd precinct, the plaintiff requested that the defendant officers safeguard his money.
31. Upon arrival at the 73rd precinct, the plaintiff was taken before a desk sergeant, who instructed the plaintiff to "*come over here so that we can count the money in front of you*".
32. As the plaintiff's money was being counted, Police Officer John Doe 1 walked away to an unknown destination within the precinct, and after a short while, returned, and insisted on searching the plaintiff once again.
33. Following that search, Police Officer John Doe 1 alleged that he had found illegal drugs upon the person of the plaintiff. The plaintiff responded "*that must be yours*", to which Police Officer John Doe 1 stated that the cash that the plaintiff had upon him would be forfeited.
34. Police Officer John Doe 1 stated to the plaintiff "*all this could have been avoided if you had just rolled the window all the way down*".
35. At that juncture, Police Officer John Doe 1 directed one of the other defendant officers to subject the plaintiff to an unlawful strip search.
36. Nothing illegal was found upon the person of the plaintiff during the strip search.
37. The plaintiff was then processed, or otherwise fingerprinted and photographed.
38. Subsequently, the plaintiff was transported to "central booking", situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn New York 11201.

39. Subsequently, the plaintiff was arraigned before a Kings County criminal court judge on the following charges:
- a. P.L. 195.05 - "Obstructing Governmental Administration in the Second Degree";
 - b. V.T.L. (12-A)(B)(2) - Improper Coating on Side Windows; and
 - c. P.L. 220.03 - Criminal Possession of a Controlled Substance in the Seventh Degree.
40. In the complaint, which was sworn to by defendant officer Paul Stueve, he (Police Officer Paul Stueve) stated *inter alia*, that he "removed a quantity of heroin from inside defendant's jacket pocket".
41. The above-referenced allegations and charges were a blatant lies and a complete fabrication.
42. Upon arraignment, the plaintiff pleaded "*not guilty*", and was released upon his own recognizance. The docket number of the Kings County Criminal Court was 2013KN003619.
43. The criminal action against the plaintiff was dismissed on June 9, 2014.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

44. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. Following the plaintiff's arrest, the defendant officers searched and/or caused the plaintiff and/or his property to be searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.
46. As a result of the foregoing, the plaintiff and/or his property was/were subjected to illegal and improper search(es).
47. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

48. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983

49. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 48 of this complaint as though fully set forth herein.
50. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
51. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
52. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER NEW
YORK STATE LAW/§ 42 U.S.C § 1983

53. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 52 of this complaint as though fully set forth herein.
54. The commencement and continued prosecution of the criminal judicial proceeding against plaintiff, including the arrest, the imprisonment, and the charges against plaintiff were committed by or at the insistence of the defendant officers without probable cause or legal justification, and with malice.

55. That the defendant officers were directly involved in the initiation of criminal proceedings against the plaintiff.
56. That the defendant officers lacked probable cause to initiate criminal proceedings against the plaintiff.
57. That the defendant officers acted with malice in initiating criminal proceedings against the plaintiff.
58. That the defendant officers were directly involved in the continuation of criminal proceedings against the plaintiff.
59. That the defendant officers lacked probable cause in continuing criminal proceedings against the plaintiff.
60. That the defendant officers acted with malice in continuing criminal proceedings against the plaintiff.
61. That the defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
62. That the defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
63. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
64. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
65. That upon information and well-founded belief, the defendant officers misrepresented and falsified evidence before a Kings County Grand Jury panel.
66. That upon information and well-founded belief, the defendant officers withheld exculpatory evidence from a Kings County Grand Jury panel.
67. That the defendant officers did not make a complete statement of facts to a Kings County Grand Jury panel, thus misleading them.
68. The criminal judicial proceeding initiated against plaintiff was dismissed on June 9, 2014, and terminated in the plaintiff's favor.

69. The arrest, imprisonment and prosecution of the plaintiff were malicious and unlawful, because plaintiff had committed no crime and there was no probable cause to believe that plaintiff had committed any crimes.
70. The defendant officers actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against the plaintiff were false and untrue.
71. As a consequence of the malicious prosecution by the defendant officers, plaintiff suffered a significant loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
72. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant officers and the City of New York, individually and severally.
73. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
74. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

75. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 74 of this complaint as though fully set forth herein.
76. The defendant officers created false evidence against the plaintiff.
77. The defendant officers forwarded false evidence and false information to the prosecutors in the Kings County District Attorney's office.

78. That the defendant officers were directly involved in the initiation of criminal proceedings against the plaintiff.
79. That the defendant officers lacked probable cause to initiate criminal proceedings against the plaintiff.
80. That the defendant officers acted with malice in initiating criminal proceedings against the plaintiff.
81. That the defendant officers were directly involved in the continuation of criminal proceedings against the plaintiff.
82. That the defendant officers lacked probable cause in continuing criminal proceedings against the plaintiff.
83. That the defendant officers acted with malice in continuing criminal proceedings against the plaintiff.
84. That the defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
85. That the defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
86. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
87. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
88. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendant officers violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
89. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an

amount to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST EACH
DEFENDANT OFFICER JOHN DOE 1: EXCESSIVE FORCE UNDER 42 U.S.C §
1983

90. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 89 of this complaint as though fully set forth herein.
91. The level of force employed by the defendant officer John Doe 1 was objectively unreasonable, and in violation of the plaintiff's constitutional rights.
92. As a result of the aforementioned conduct of the defendant officer John Doe 1, the plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.
93. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

94. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.
95. The defendant officers had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
96. The defendant officers failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
97. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the

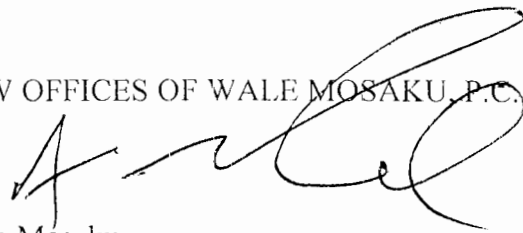
amount of to be determined at trial, against each of the defendants,
individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
February 14, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By:


Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

ANTHONY ALSTON,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER PAUL
STUEVE (Tax #: 953454; Shield # 30003), SERGEANT
JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and
POLICE OFFICER JOHN DOE 2,

Defendants.

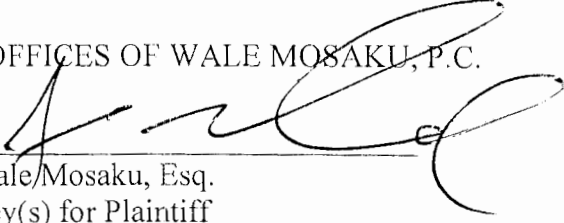
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
February 14, 2015

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.

ANTHONY ALSTON,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, POLICE OFFICER PAUL STUEVE (Tax #: 953454; Shield # 30003), SERGEANT JOHN DOE 1, POLICE OFFICER JOHN DOE 1 and POLICE OFFICER JOHN DOE 2,
Defendant(s) .

SUMMONS & COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
